STUDENT COMPLAINTS PROCEDURE

SCOPE

This procedure applies to:

- all students;
- former students who make complaints within the specified timeframe;
- prospective students whose complaint relates to administrative process(es) during application, selection or admission;
- all courses and units; and
- all staff, including adjuncts with teaching or supervisory responsibilities.

PROCEDURE STATEMENT

This procedure outlines the steps students must take to submit a complaint and the responsibility of the University at each stage. Staff responsibilities in relation to receiving, managing and investigating student complaints are set out in the Student Complaints Management Procedure.

This procedure does not apply to matters where Monash University (the University) has separate processes for how it handles complaints or appeals in relation to those matters. Without limiting the generality of the preceding sentence, this procedure may not be used to:

- notify, complain about, or report an incident or concern relating to academic, general or research misconduct under Monash University (Council) Regulations Part 7 – Student Discipline;
- complain about an outcome reached under the Monash University (Council) Regulations Part 7 – Student Discipline;
- notify, complain about, or report an incident or concern involving the interpersonal behaviour of students, such as sexual assault, assault, harassment or bullying, stalking. These matters should be reported to the Safer Community Unit;
- initiate an action about discrimination or harassment, unprofessional or inappropriate conduct by a staff member or to complain about the outcome of a matter addressed under the Staff Code of Conduct;
- initiate a request for re-marking of an assessment task in a coursework unit. This process is governed by the Marking and Feedback Procedure;
- initiate an action relating to intellectual property ownership or commercialisation revenue sharing or complain about a matter addressed under the Intellectual Property: Dispute Resolution Procedure;
- complain about a student progress decision reached under the Monash University (Academic Board) Regulations, Part 4 – Exclusion for Unsatisfactory Progress or Inability to Progress, or Part 6 – Student Progress Management;
- complain about a decision relating to employment at the University;
- complain about a financial assistance decision that is a reviewable decision under the Higher Education Support Act 2003;
- complain about an outcome reached under the Monash University (Council) Regulations Part 8 – Revocation of Degrees or Other Awards;
- complain about an outcome reached under the Monash University (Council) Regulations Part 13 – Exclusion for Safety Reasons;
- complain about a Freedom of Information decision; or
- complain about an election of members of Council or the Academic Board.

1. Information and support for students seeking to make a complaint

1.1 The University will inform students about its complaints process and student support services as part of orientation and induction programs.

1.2 When making a complaint, students are expected to:

- treat staff with courtesy and respect;
- not engage in behaviour that due to its nature or frequency raises substantial health, safety, resource or equity issues;
- not make complaints that are frivolous, vexatious or lacking in substance;
- provide truthful information and not purposely misrepresent or withhold relevant information;
- articulate the desired outcome that would resolve the matter;

- cooperate with the process, including answering questions, providing information and copies of documents, and attending meetings if requested; and
- keep records of their interaction with the University, including consultation with staff.

Failure to do so may result in the process being discontinued.

1.3 A student making a complaint may be accompanied and assisted, but not represented, by one support person at any meeting or consultation including:

- a member of staff of a recognised Monash student association;
- a student of the University;
- a member of staff of the University; or
- a close family member or friend of the student.

2. Student complaint stage 1: Informal, direct complaint

2.1 In the first instance, students should raise complaints directly with either the staff member concerned or another staff member in the area responsible for the decision or service related to the complaint. Students can speak directly to the staff member, or write to them about the complaint.

2.2 Where a student wishes to provide feedback to the University, without seeking a resolution, they may follow stages 1 and/or 2 of this procedure but should make clear that the purpose is feedback. The stage 3 complaints process focuses on finding a resolution and is not an appropriate way for students to provide feedback to staff. Students are also welcome to provide feedback to the University through other avenues, such as unit evaluations.

2.3 A student should raise a complaint as soon as possible after the event that caused the complaint. Delaying a complaint may make it more difficult for staff to resolve the matter.

2.3.1 Where the complaint relates to the outcome of an international student transfer request during the restricted period, the complaint to appeal a decision must be raised within 20 working days of receipt of notification of a refusal.

2.4 Where the complaint relates to an assessment task, examination or thesis, it should not be made in the period between the date of the assessment or the date when a thesis is submitted, and the date when the marking or thesis examination process has been completed.

2.5 Students must provide all relevant information when raising a complaint. This is to enable staff to make informed decisions in a timely manner.

3. Student complaint stage 2: Informal, escalated complaint

3.1 Students must attempt a resolution through the stage 1 process before proceeding to stage 2, unless there is a compelling reason not to do so, for example if the staff member is unavailable or the complaint is that the staff member concerned is prejudiced. The mere fact that a staff member has been involved in teaching a unit does not constitute a reason to bypass stage 1.

3.2 Students should direct stage 2 complaints to a senior staff member responsible for the relevant unit, course or service, such as a chief examiner, program director, head of school/department, supervisor, manager, or similar.

3.3 Where the complaint relates to the research component of a graduate research course, the student can direct the complaint to:

- the graduate research coordinator/program director; or
- the head of academic unit, if the graduate research coordinator/program director is their supervisor or is unavailable; or
- the faculty associate dean (graduate research) (or equivalent) where the complaint is more appropriately handled at faculty level.

4. Student complaint stage 3: Formal investigation

Lodging a stage 3 complaint

4.1 Where a complaint has not been resolved through stage 1 or 2, the student may lodge a stage 3 complaint. Stage 3 is a formal, written request for resolution of the complaint. It involves formal investigation by nominated case officers and complaints officers who have not had previous involvement with the complaint.

4.2 Students lodging stage 3 complaints must use the prescribed form on the How to make a complaint webpage.

4.3 Students must attempt stage 1 and/or stage 2 resolution before lodging a stage 3 complaint, unless there is a compelling reason not to do so.

4.4 Students are expected to lodge a stage 3 complaint as soon as possible after attempting stage 1 and/or stage 2 resolution but no later than six months from the date of the event that gave rise to the complaint. Where the complaint relates to a unit taught over a

period longer than six months, it must be lodged within six months of the event or four weeks from the release of results for that unit, whichever is later.

4.4.1 Where the stage 3 complaint relates to the outcome of an international student transfer request during the restricted period, the complaint must be raised within 20 working days after receiving the outcome of a stage 1 and/or stage 2 complaint.

4.5 Students must provide all relevant information at the time of lodging a stage 3 complaint, or as soon as practicable. Failure to do so may result in the process being dismissed or discontinued.

4.6 If a student is prevented from lodging a stage 3 complaint within the timeframe specified in 4.4 due to circumstances beyond their control, they can request an extension using the online form. Requests for extensions must include evidence of the circumstances and demonstrate that they were beyond the student's control. If approved, the extension will be proportionate to the circumstances. An extension will not be granted if a delay in lodging a stage 3 complaint would significantly impact the availability of information required for the investigation, or the ability to offer an appropriate resolution to the student.

What to expect after lodging a stage 3 complaint

4.7 An indicative investigation timeline for stage 3 complaints is set out in table 1.

TABLE 1: STAGE 3 INVESTIGATION TIMELINE

4.7.1	Within 5 working days of lodging a stage 3 complaint	Email acknowledgement that the stage 3 complaint has been received.
4.7.2	Within 10 working days of lodging a stage 3 complaint	Formal investigation commences. If the case officer cannot refer the complaint for formal investigation the student will be notified of the outcome and reasons for doing so, which may include: ● Further information or clarifications are needed for the investigation. The date that the student provides the requested information will be considered the lodgement date for the purposes of the investigation. ● The student has not attempted stage 1 and/or 2 resolution, without providing a compelling reason why this is the case. ● The complaint falls outside the scope of the Student Complaints Policy. In this case the student may be directed to another process. ● The complaint was lodged outside the timeframe, in which case, the student will be notified of their right to seek an extension if exceptional circumstances prevented them from submitting the complaint within the prescribed period.
4.7.3	Within 20 working days of lodging a stage 3 complaint	The student will receive via email: ● a notification of the findings of the investigation, the reasons and any recommendations arising; or ● an update on the status of the investigation, including an estimated timeframe for concluding the investigation.
4.7.4	Within 10 working days of notification of findings	If the findings include recommendations for resolving the complaint, the student must accept or decline the recommendations via email within 10 working days. If accepted, the recommendations will be implemented immediately.

4.8 If a student is called to a meeting to discuss the complaint, the student will receive prior to the meeting an agenda stating the purpose of the meeting, names of all participants and any other information that will help them prepare for the meeting. The same information will also be given to any staff member subject to the complaint who has been invited to attend. The student may be accompanied by one support person, as set out in section 1.3.

4.9 The student can withdraw a stage 3 complaint at any time by writing to the case officer.

4.10 See also the Student Complaints Management Procedure which sets out how staff handle complaints.

Confidentiality

4.11 Staff involved in a stage 3 complaint will only discuss the complaint with persons who:

- are assisting in the investigation;
- can provide information or advice relevant to the investigation;
- are involved in implementing the decision; or

- are involved in correcting any systemic issues found in the investigation of the complaint.

4.12 Staff involved in a stage 3 complaint may be required to disclose information if required to prevent a serious threat to life, health, safety or welfare, if there is a serious threat to public health, public safety or public welfare, or to meet regulatory reporting requirements.

5. Student complaint stage 4: Internal review by the University Student Ombudsman

5.1 A student can request a review of the outcome of a stage 3 complaint by the University Student Ombudsman if they believe that one or more of the grounds for a review are met, as set out in the University Student Ombudsman Policy.

5.2 Students must make a request for review by the University Student Ombudsman within 20 working days of the written notification of findings. A student who has accepted all recommendations for a solution cannot request a review by the University Student Ombudsman.

6. Student complaint stage 5: External review

6.1 Monash University Australia students who are not satisfied with the outcome of a stage 4 complaint can request a review by the Victorian Ombudsman. Students can find more information on the Victorian Ombudsman website.

6.2 Students at Monash University Malaysia also have the option to request an external review by the Registrar General. Students may do so through the Ministry of Higher Education's Public Complaints Management System (SISPAA).

6.3 Monash University Indonesia students have the option to make a complaint through the Ministry of Education and Culture Information and Complaint Services.

6.4 Monash Suzhou students have the option to make a complaint through the Ministry of Education.

7. Anonymous complaints

7.1 The University will publish information on the University website on how students can make anonymous complaints.

7.2 Anonymous complaints are managed differently compared to complaints by identified students. The principles and rules set out elsewhere in the Student Complaints Policy and the associated procedures do not automatically apply to anonymous complaints, due to the complainant's wish to be anonymous and the limitations this places on the University's ability to verify claims made, investigate the matter and offer a resolution.

7.3 The University can only investigate an anonymous complaint if:

- it relates to University operations or policy in a general way;
- there is documentary evidence to support the complaint that can be independently verified; and
- it is not necessary for a staff member or area who is subject to the complaint to be aware of the complainant's identity in order for them to respond.

DEFINITIONS

Case officer	Staff member responsible for receiving and managing a stage 3 complaint. A case officer may conduct all or part of the investigation and report findings to the complaints officer for the area, or to the Chair of the GRC or delegate for academic complaints related to the research component of a graduate research course.
Complaints officer	Staff member responsible for overseeing the investigation of a stage 3 complaint. For stage 3 complaints relating to the research component of a graduate research course, the complaints officer makes recommendations to the Chair of the Graduate Research Committee, or delegate, on the outcome of a stage 3 complaint. For all other stage 3 complaints, the complaints officer will determine the outcome of the complaint. A complaints officer can also undertake the role of a case officer in relation to the same complaint.
Frivolous	Not serious, relies on trivialities, does not warrant a review of the matter concerned.
Lacking in substance	Superficial, having no basis for making the claim.
Staff	For the purposes of this procedure, staff includes all Monash staff and adjuncts with teaching or supervisory responsibilities.
University Student Ombudsman	A person appointed by the University Council who provides an independent review of the University's handling of student complaints.

Vexatious	Done to cause unjustified trouble or for a purpose other than genuine.
Working day	A day other than a Saturday or Sunday, a public holiday under the Public Holidays Act 1993 (Vic), or a university holiday. In Malaysia, working day means a day other than a Saturday, Sunday or a public holiday in the relevant state in Malaysia. In Indonesia, working day means a day other than a Saturday, Sunday or a public holiday, including joint holidays/mass leave.

GOVERNANCE

Parent policy	Student Complaints Policy	
Supporting schedules		
Associated procedures	Student Complaints Management Procedure Intellectual Property: Dispute Resolution Procedure Unacceptable Conduct Response Procedure Unacceptable Conduct Response Schedule - Monash University Indonesia Staff/Student Personal Relationships Procedure University Student Ombudsman Procedure	
Legislation mandating compliance	Australian Code for the Responsible Conduct of Research, 2018 Tertiary Education Quality and Standards Agency (TEQSA) Act 2011 (Cth) – Higher Education Standards Framework (Threshold Standards) 2021 Higher Education Support Act 2003 (Cth) National Code of Practice for Providers of Education and Training to Overseas Students 2018 (Cth) Retention and Disposal Authority for Records of the Higher and Further Education Functions	
Category	Academic	
Approval	University Education Committee DATE 25 November 2020 MEETING NUMBER 9/2020 / AGENDA ITEM 10.1	Graduate Research Committee DATE 23 November 2020 MEETING NUMBER 9/2020 / AGENDA ITEM 10.4
Endorsement	Deputy Vice-Chancellor (Education) DATE 18 November 2020	
Procedure owner	Deputy Vice-Chancellor (Education)	
Date effective	11 January 2021	
Review date	11 January 2024	
Version	1.3 *(Minor amendment effective on 5 December 2024)*	
Content enquiries	policy-education@monash.edu	